

In the Supreme Court of Bangladesh
High Court Division
(Criminal Miscellaneous Jurisdiction)

Criminal Appeal No.1109 of 2024

In the matter of:

An appeal under Section 28 of the Nari-O-Shishu Nirjatan Daman Ain, 2000 (as amended 2003).

-And-

In the matter of:

Samiul Islam @ Shuvo @ Md. Shuvo

.... Accused-Appellant

-Versus-

The State and another

.... Opposite Parties

Mr. Md. Akter Rasul, Advocate

.... For the accused-Appellant.

Mr. Sujit Chatterjee, D.A.G. with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State.

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

The 12th March 2024

This is an appeal under Section 28 of the Nari-O-Shishu Nirjatan Daman Ain, 2000 (as amended 2003) for bail.

In this case under Section 9(3) of the Nari-O-Shishu Nirjatan Daman Ain, 2000 (as amended in 2003) the accused appellant has made a confession under Section 164 of the

Code of Criminal Procedure which appears to be inculpatory in nature.

In view of above materials on record we are not inclined to grant bail to the appellant at this point of time but we feel it necessary to pass a direction upon the Trial Court below for conclusion of the trial of the case expeditiously.

Accordingly, we are directing the learned Judge of Nari-O-Shishu Nirjatan Tribunal No.1, Nilphamari to conclude the trial of the case within 6(six) months from the date of receipt of this order without allowing any adjournment beyond 15(fifteen) days.

The days covered by the adjournment at the instance of the accused be excluded from above period.

But if the learned Judge fails to conclude the trial within above period he will have to explain in writing to this Court through the Registrar General, Supreme Court of Bangladesh as to why the trial could not be concluded.

The learned Judge shall also consider the petition for bail if any filed by the appellant with sympathy and in accordance with law.

The Superintendent of Police, Nilphamari is directed to ensure that the prosecution witnesses are produced before the Trial Court on the date to be fixed by the Court without any fail.

The Public Prosecutor, Nilphamari is directed not to submit any petition for adjournment if any prosecution witness appears to give evidence.

Let copies of this order be sent to the Registrar General, Supreme Court of Bangladesh, learned Judge of Nari-O-Shishu Nirjatan Tribunal No.1, Nilphamari, Superintendent of Police, Nilphamari and Public Prosecutor, Nilphamari at once.

With above direction this appeal is disposed of.

Let a copy of this order be transmitted to the Court concerned at once.

MD. MASUDUR RAHMAN
BENCH OFFICER